

ORDER SHEET
LAHORE HIGH COURT, MULTAN BENCH
MULTAN
(JUDICIAL DEPARTMENT)

Civil Revision No: 1186-D of 2025

Muhammad Zahoor & 8 Others **Versus** Mst. Shamim Akhtar, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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29.09.2025 Rana Nasir Iqbal, Advocate for the petitioners.

This civil revision is directed against judgments and decrees dated 19.10.2024 and 01.03.2025. Through the former consolidated judgment, the suit of the petitioners was dismissed whereas the application of respondent-Shamim Akhtar for grant/issuance of succession certificate was accepted. Two appeals were filed by the petitioners, which were dismissed by the Appellate Court below *vide* consolidated judgment and decree dated 01.03.2025. Being aggrieved, the petitioners filed Civil Revision No. 418-D of 2025 before this Court, which was admitted for regular hearing on 09.04.2025 and interim relief was granted. The said civil revision was, however, dismissed as withdrawn *vide* order dated 12.05.2025.

2. Learned counsel for the petitioners, while placing reliance on the case reported as Haji Mehboob Alam v. Rana Khalid Mahmood and 3 others (2025 MLD 1482), contends that although the petitioners have filed second revision petition beyond limitation period of 90 days, however, this is a fit case in which limitation cannot be a hurdle in dispensation of justice. When confronted as to how second revision petition is maintainable when first

revision petition was dismissed as withdrawn, contends that the earlier revision petition bearing No.418-D/2025 was admitted through a speaking order and there was no justification or reason for the petitioners to withdraw the same and it was the learned Bench that forced the withdrawal to create disposal of a case.

3. Arguments heard. Record perused.

4. Admittedly, the present petition is the second civil revision directed against the same consolidated judgments and decrees. When time limitation is reckoned from the date of the impugned judgment of the Appellate Court below, it is *prima facie* time barred and an application bearing C.M. No.2/2025 for condonation of delay has also been filed. The case of Haji Mehboob Alam *supra* is not of any help inasmuch as in the said case, it has been held that this Court while exercising revisional jurisdiction can overlook limitation and rectify injustice if apparent on the record. However, the ratio of case of Haji Mehboob Alam *supra* cannot be stretched to sustain a second revision petition after the first had been dismissed as withdrawn.

5. When confronted with the question as to how the second revision petition is maintainable, learned counsel for the petitioners has taken a complete somersault by stating that the earlier revision petition was withdrawn because he was indisposed on 12.05.2025 and was thus unable to appear personally; a junior appeared on his behalf and the earlier revision petition was consequently withdrawn while his attendance was marked. He averred that on 12.05.2025, learned Judge of this Court seized with the matter compelled the learned counsel (junior/associate of the

present counsel) to withdraw the earlier revision petition with a view to create a disposal. Learned counsel has put forward this assertion as the ground which, in his submission, renders the second revision competent. Learned counsel was confronted with para 11 of the revision petition which reads as under:

“11. That, after the petitioners filed an (*sic*) civil revision before Honorable High Court Multan Bench, which was withdrawn due to poor health of the counsel on 12.05.2025.”

Clearly, learned counsel for the petitioners, who was also prosecuting the earlier petition, has taken a contradictory stance during the course of arguments and said submission/contention amounts to a direct aspersion upon the conduct of the sitting Judge of this Court and an afterthought designed to re-open a matter, which the petitioners had themselves caused to be dismissed as withdrawn. Such contemptuous conduct cannot be countenanced. Where a civil revision has been dismissed as withdrawn at the instance of a party, the remedy thereby invoked stands exhausted and a fresh revision against the same judgment and decree is not maintainable. Allowing a second revision in the circumstances alleged would permit a collateral re-litigation of matters already disposed of by the party itself.

6. Even otherwise, the contentions of learned counsel for the petitioners are belied by the record inasmuch as if there were any forceful withdrawal, why an immediate action was not taken inasmuch the order of withdrawal was passed on 12.05.2025 whereas the present petition has been filed on 22.09.2025. In the present matter, the earlier

revision petition had though been admitted but was ultimately withdrawn in the presence of counsel for the respondents. Once a petition is dismissed as withdrawn, the legal effect is final and conclusive, and no reliance can be placed upon the earlier admitting note to revive or continue the proceedings. The contention that the petition was admitted through a speaking order, which indicates that there was no justification for the petitioners to withdraw the same, does not constitute a valid ground to prevent the withdrawal followed by filing of the second revision petition.

7. Once this order was dictated in Open Court and this Court was mindful to impose the costs, request was made by the petitioner side to withdraw the same, which was not permitted by this Court. The present petition is **dismissed**. Restraint, however, has been shown from imposing costs as learned counsel for the petitioners has prayed for withdrawal, realizing weakness of his stance. He is directed to remain careful in future and refrain from causing aspersions upon the conduct of the learned Bench.

(Anwaar Hussain)
Judge

Approved for reporting.

Judge

Order was announced and dictated in Open Court,
however, finalized/signed on 02.10.2025.

Akram